



Reprinted
January 27, 2026

SENATE BILL No. 236

DIGEST OF SB 236 (Updated January 26, 2026 4:40 pm - DI 107)

Citations Affected: IC 16-18; IC 16-34; IC 34-6; IC 34-7; IC 34-13; IC 34-30; IC 35-46.

Synopsis: Abortion inducing drugs and abortion reports. Modifies the definitions of "abortion" and "abortion inducing drug". Amends the information required to be reported to the Indiana department of health (state department) concerning an abortion complication. Requires the state department to send each abortion complication report to the office of the inspector general. Provides that a person who manufactures, distributes, mails, transports, delivers, prescribes, or provides an abortion inducing drug is jointly and severally liable for: (1) the wrongful death of an unborn child or pregnant woman from the use of an abortion inducing drug; and (2) personal injury of an unborn child or pregnant woman from the use of the abortion inducing drug. Allows the mother or father of an unborn child to bring a wrongful death action for the wrongful death of the unborn child from the use of abortion inducing drugs. Provides affirmative defenses. Allows for qui tam actions against certain persons. Adds an exception for the prohibition on abortion inducing drugs.

Effective: July 1, 2026.

**Johnson T, Brown L, Doriot, Donato,
Maxwell, Buchanan, Raatz, Young M,
Tomes, Rogers, Gaskill, Alexander,
Holdman, Byrne**

January 8, 2026, read first time and referred to Committee on Judiciary.
January 22, 2026, amended, reported favorably — Do Pass.
January 26, 2026, read second time, amended, ordered engrossed.

SB 236—LS 7104/DI 107



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Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 236

A BILL FOR AN ACT to amend the Indiana Code concerning health.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 16-18-2-1, AS AMENDED BY P.L.136-2013,
2 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 1. "Abortion" means the ~~termination of human~~
4 ~~pregnancy with an intention other than to produce a live birth or to~~
5 ~~remove a dead fetus. The term includes abortions by surgical~~
6 ~~procedures and by abortion inducing drugs: act of using or~~
7 ~~prescribing an instrument, a drug, a medicine, or any other~~
8 ~~substance, device, or means with the intent to cause the death of an~~
9 ~~unborn child of a woman. The term does not include birth control~~
10 ~~devices or contraceptives. An act is not an abortion if the act is~~
11 ~~done with the intent to:~~
12 (1) save the life or preserve the health of an unborn child;
13 (2) remove a dead, unborn child whose death was caused by
14 miscarriage or stillbirth; or
15 (3) remove an ectopic pregnancy.

SB 236—LS 7104/DI 107



SECTION 2. IC 16-18-2-1.6, AS ADDED BY P.L.136-2013, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1.6. "Abortion inducing drug" means ~~a medicine, drug, or substance prescribed or dispensed with the intent of terminating a clinically diagnosable pregnancy with the knowledge that the termination will, with reasonable likelihood, cause the death of the fetus. The term includes the off-label use of a drug known to have abortion inducing properties if the drug is prescribed with the intent of causing an abortion.~~ **a drug, a medicine, or any other substance, including a regimen of two (2) or more drugs, medicines, or substances, prescribed, dispensed, or administered with the intent of terminating a clinically diagnosable pregnancy of a woman and with knowledge that the termination will, with reasonable likelihood, cause the death of the woman's unborn child. The term includes off label use of drugs, medicines, or other substances known to have abortion inducing properties that are prescribed, dispensed, or administered with the intent of causing an abortion, including:**

- (1) the mifepristone (Mifeprex) regimen;**
- (2) misoprostol (Cytotec); and**
- (3) methotrexate.**

The term does not include a drug, medicine, or other substance that may be known to cause an abortion but is prescribed, dispensed, or administered for other medical reasons.

SECTION 3. IC 16-18-2-167, AS AMENDED BY P.L.117-2015, SECTION 32, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 167. (a) "Health facility":

- (1) except for purposes of IC 16-28-15, means a building, a structure, an institution, or other place for the reception, accommodation, board, care, or treatment extending beyond a continuous twenty-four (24) hour period in a week of more than four (4) individuals who need or desire such services because of physical or mental illness, infirmity, or impairment; ~~and~~
- (2) for purposes of IC 16-28-15, has the meaning set forth in IC 16-28-15-3; **and**
- (3) for purposes of IC 16-34-7, has the meaning set forth in IC 16-34-7-3(3).**

(b) The term does not include the premises used for the reception, accommodation, board, care, or treatment in a household or family, for compensation, of a person related by blood to the head of the household or family (or to the spouse of the head of the household or family) within the degree of consanguinity of first cousins.



(c) The term does not include any of the following:

- (1) Hotels, motels, or mobile homes when used as such.
- (2) Hospitals or mental hospitals, except for that part of a hospital that provides long term care services and functions as a health facility, in which case that part of the hospital is licensed under IC 16-21-2, but in all other respects is subject to IC 16-28.
- (3) Hospices that furnish inpatient care and are licensed under IC 16-25-3.
- (4) Institutions operated by the federal government.
- (5) Foster family homes or day care centers.
- (6) Schools for individuals who are deaf or blind.
- (7) Day schools for individuals with an intellectual disability.
- (8) Day care centers.
- (9) Children's homes and child placement agencies.
- (10) Offices of practitioners of the healing arts.
- (11) Any institution in which health care services and private duty nursing services are provided that is listed and certified by the Commission for Accreditation of Christian Science Nursing Organizations/Facilities, Inc.
- (12) Industrial clinics providing only emergency medical services or first aid for employees.
- (13) A residential facility (as defined in IC 12-7-2-165).
- (14) Maternity homes.
- (15) Offices of Christian Science practitioners.

SECTION 4. IC 16-18-2-282, AS AMENDED BY P.L.93-2022, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 282. (a) "Physician", except as provided in subsections (b), (c), and (e), means a licensed physician (as defined in section 202 of this chapter).

(b) "Physician", for purposes of IC 16-41-12, has the meaning set forth in IC 16-41-12-7.

(c) "Physician", for purposes of IC 16-37-1-3.1 and IC 16-37-3-5, means an individual who:

- (1) was the physician last in attendance (as defined in section 282.2 of this chapter); or
- (2) is licensed under IC 25-22.5.

(d) "Physician", for purposes of IC 16-48-1, is subject to IC 16-48-1-2.

(e) "Physician", for purposes of IC 16-34-6, has the meaning set forth in IC 16-34-6-3.

(f) "Physician", for purposes of IC 16-34-7, has the meaning set forth in IC 16-34-7-3(4).



SECTION 5. IC 16-34-1-4, AS AMENDED BY P.L.218-2021,
SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
JULY 1, 2026]: Sec. 4. No:

- (1) physician;
- (2) nurse;
- (3) physician assistant;
- (4) pharmacist;
- (5) employee or member of the staff of a hospital or other facility
in which an abortion may be performed; or
- (6) mental health provider;

shall be required to perform an abortion, to prescribe, administer, or
dispense an abortion inducing drug **in violation of IC 16-34-7**, to
provide advice or counsel to a pregnant woman concerning medical
procedures resulting in, or intended to result in, an abortion, to assist
or participate in medical procedures resulting in, or intended to result
in an abortion, or to handle or dispose of aborted remains, if that
individual objects to such procedures on ethical, moral, or religious
grounds.

SECTION 6. IC 16-34-2-1, AS AMENDED BY THE TECHNICAL
CORRECTIONS BILL OF THE 2026 GENERAL ASSEMBLY, IS
AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]:
Sec. 1. (a) Abortion shall in all instances be a criminal act, except when
performed under the following circumstances:

- (1) Except as prohibited in IC 16-34-4, before the earlier of
viability of the fetus or twenty (20) weeks of postfertilization age
of the fetus, if:
 - (A) for reasons based upon the professional, medical judgment
of the pregnant woman's physician, if either:
 - (i) the abortion is necessary when reasonable medical
judgment dictates that performing the abortion is necessary
to prevent any serious health risk to the pregnant woman or
to save the pregnant woman's life; or
 - (ii) the fetus is diagnosed with a lethal fetal anomaly;
 - (B) the abortion is performed by the physician in a hospital
licensed under IC 16-21 or an ambulatory outpatient surgical
center (as defined in IC 16-18-2-14) that has a majority
ownership by a hospital licensed under IC 16-21;
 - (C) the woman submitting to the abortion has filed her consent
with her physician. However, if in the judgment of the
physician the abortion is necessary to preserve the life of the
woman, her consent is not required;
 - (D) the woman submitting to the abortion has filed with her



physician the written consent of her parent or legal guardian if required under section 4 of this chapter; and

(E) before the abortion, the attending physician shall certify in writing to the hospital or ambulatory outpatient surgical center in which the abortion is to be performed, that:

(i) in the attending physician's reasonable medical judgment, performing the abortion is necessary to prevent any serious health risk to the pregnant woman or to save the pregnant woman's life; or

(ii) the fetus has been diagnosed with a lethal fetal anomaly.

All facts and reasons supporting the certification shall be set forth by the physician in writing and attached to the certificate.

However, under this article, an abortion inducing drug may not be dispensed, prescribed, administered, or otherwise given to a pregnant woman **after eight (8) weeks of postfertilization age unless the abortion inducing drug is being administered as part of an abortion authorized under this article or for the removal of a dead fetus due to miscarriage.** A physician must dispense the abortion inducing drug in person and have the pregnant woman consume the drug in the presence of the physician. A physician shall examine a pregnant woman in person before prescribing or dispensing an abortion inducing drug. The physician shall provide the pregnant woman with a copy of the manufacturer's instruction sheets and require that the pregnant woman sign the manufacturer's patient agreement form. A physician shall also provide, orally and in writing, along with other discharge information, the following statement: "Some evidence suggests that the effects of Mifepristone may be avoided, ceased, or reversed if the second pill, Misoprostol, has not been taken. Immediately contact the following for more information at (insert applicable abortion inducing drug reversal ~~Internet web site~~ **website** and corresponding hotline number)". The physician shall retain a copy of the signed patient agreement form, and the signed physician's agreement form required by the manufacturer, in the patient's file. As used in this subdivision, "in person" does not include the use of telehealth or telemedicine services.

(2) Except as prohibited by IC 16-34-4, during the first ten (10) weeks of postfertilization age of the fetus, if:

(A) the pregnancy is a result of rape or incest;

(B) all the circumstances and provisions required for legal abortion set forth in subdivision (1)(C) through (1)(D) are



- 1 present and adhered to;
- 2 (C) the abortion is performed in a hospital licensed under
- 3 IC 16-21 or ambulatory outpatient surgical center (as defined
- 4 in IC 16-18-2-14) that has a majority ownership by a hospital
- 5 licensed under IC 16-21; and
- 6 (D) before the abortion, the attending physician shall certify in
- 7 writing to the ambulatory outpatient surgical center or hospital
- 8 in which the abortion is to be performed, after proper
- 9 examination, the abortion is being performed at the woman's
- 10 request because the pregnancy is the result of rape or incest.
- 11 All facts and reasons supporting the certification shall be set
- 12 forth by the physician in writing and attached to the certificate.
- 13 (3) Except as provided in subsection (b) or as prohibited by
- 14 IC 16-34-4, at the earlier of viability of the fetus or twenty (20)
- 15 weeks of postfertilization age and any time after, for reasons
- 16 based upon the professional, medical judgment of the pregnant
- 17 woman's physician if:
- 18 (A) based on reasonable medical judgment, performing the
- 19 abortion is necessary to prevent any serious health risk to the
- 20 pregnant woman or to save the pregnant woman's life;
- 21 (B) all the circumstances and provisions required for legal
- 22 abortion set forth in subdivision (1)(C) through (1)(D) are
- 23 present and adhered to;
- 24 (C) the abortion is performed in a hospital licensed under
- 25 IC 16-21;
- 26 (D) the abortion is performed in compliance with section 3 of
- 27 this chapter; and
- 28 (E) before the abortion, the attending physician shall certify in
- 29 writing to the hospital in which the abortion is to be
- 30 performed, that in the attending physician's reasonable medical
- 31 judgment, performing the abortion is necessary to prevent any
- 32 serious health risk to the pregnant woman or to save the
- 33 pregnant woman's life. All facts and reasons supporting the
- 34 certification shall be set forth by the physician in writing and
- 35 attached to the certificate.
- 36 (b) A person may not knowingly or intentionally perform a partial
- 37 birth abortion unless a physician reasonably believes that:
- 38 (1) performing the partial birth abortion is necessary to save the
- 39 mother's life; and
- 40 (2) no other medical procedure is sufficient to save the mother's
- 41 life.
- 42 (c) A person may not knowingly or intentionally perform a



dismemberment abortion unless reasonable medical judgment dictates that performing the dismemberment abortion is necessary:

- (1) to prevent any serious health risk to the mother; or
- (2) to save the mother's life.

(d) Telehealth and telemedicine may not be used to provide any abortion, including the writing or filling of a prescription for any purpose that is intended to result in an abortion.

SECTION 7. IC 16-34-2-1.5, AS AMENDED BY THE TECHNICAL CORRECTIONS BILL OF THE 2026 GENERAL ASSEMBLY, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1.5. (a) The state department shall develop an informed consent brochure and post the informed consent brochure on the state department's ~~Internet web site~~: **website**.

(b) The state department shall develop an informed consent brochure that includes the following:

- (1) Objective scientific information concerning the probable anatomical and physiological characteristics of a fetus every two (2) weeks of gestational age, including the following:
 - (A) Realistic pictures in color for each age of the fetus, including the dimensions of the fetus.
 - (B) Whether there is any possibility of the fetus surviving outside the womb.
- (2) Objective scientific information concerning the medical risks associated with each abortion procedure, ~~or the use of an abortion inducing drug~~, including the following:
 - (A) The risks of infection and hemorrhaging.
 - (B) The potential danger:
 - (i) to a subsequent pregnancy; or
 - (ii) of infertility.
- (3) Information concerning the medical risks associated with carrying the child to term.
- (4) Information that medical assistance benefits may be available for prenatal care, childbirth, and neonatal care.
- (5) Information that the biological father is liable for assistance in support of the child, regardless of whether the biological father has offered to pay for an abortion.
- (6) Information regarding telephone 211 dialing code services for accessing human services as described in IC 12-13-16, and the types of services that are available through this service.
- (7) Information concerning Indiana's safe haven law under IC 31-34-2.5-1.
- (8) Information that, under certain conditions, a pregnant woman



may relinquish a child who is, or who appears to be, not more than thirty (30) days of age:

(A) to an emergency medical services provider (as defined in IC 16-41-10-1); or

(B) in a newborn safety device described in IC 31-34-2.5-1.

(c) In the development of the informed consent brochure described in this section, the state department shall use information and pictures that are available at no cost or nominal cost to the state department.

(d) The informed consent brochure must include the requirements specified in this chapter.

SECTION 8. IC 16-34-2-4.5, AS AMENDED BY P.L.179-2022(ss), SECTION 25, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4.5. (a) A physician may not perform an abortion ~~including an abortion using an abortion inducing drug~~, unless the physician:

(1) has admitting privileges in writing at a hospital located in the county where abortions are provided or in a contiguous county; or

(2) has entered into a written agreement with a physician who has written admitting privileges at a hospital in the county or contiguous county concerning the management of possible complications of the services provided.

A written agreement described in subdivision (2) must be renewed annually.

(b) A physician who performs an abortion ~~including an abortion using an abortion inducing drug~~, shall notify the patient of the location of the hospital at which the physician or a physician with whom the physician has entered into an agreement under subsection (a)(2) has admitting privileges and where the patient may receive follow-up care by the physician if complications arise.

(c) A hospital or ambulatory outpatient surgical center in which abortions are performed shall:

(1) keep at the hospital or ambulatory outpatient surgical center a copy of the admitting privileges of a physician described in subsection (a)(1) and (a)(2) who is performing abortions at the hospital or ambulatory outpatient surgical center; and

(2) submit a copy of the admitting privileges described in subdivision (1) to the state department. The state department shall verify the validity of the admitting privileges document. The state department shall remove any identifying information from the admitting privileges document before releasing the document under IC 5-14-3.

(d) The state department shall annually submit a copy of the



admitting privileges described in subsection (a)(1) and a copy of the written agreement described in subsection (a)(2) to:

- (1) each hospital located in the county in which the hospital granting the admitting privileges described in subsection (a) is located; and
- (2) each hospital located in a county that is contiguous to the county described in subdivision (1);

where abortions are performed.

(e) The state department shall confirm to a member of the public, upon request, that the admitting privileges required to be submitted under this section for a hospital or ambulatory outpatient surgical center have been received by the state department.

(f) Notwithstanding IC 5-14-3-6 and IC 5-14-3-6.5, this section only allows for the redaction of information that is described in subsection (c). This section does not allow the state department to limit the disclosure of information in other public documents.

SECTION 9. IC 16-34-2-4.7, AS AMENDED BY THE TECHNICAL CORRECTIONS BILL OF THE 2026 GENERAL ASSEMBLY, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4.7. (a) As used in this section, "abortion complication" means only the following physical or psychological conditions arising from the induction or performance of an abortion:

- (1) Uterine perforation.
- (2) Cervical laceration.
- (3) Infection.
- (4) Vaginal bleeding that qualifies as a Grade 2 or higher adverse event according to the Common Terminology Criteria for Adverse Events (CTCAE).
- (5) Pulmonary embolism.
- (6) Deep vein thrombosis.
- (7) Failure to terminate the pregnancy.
- (8) Incomplete abortion (retained tissue).
- (9) Pelvic inflammatory disease.
- (10) Missed ectopic pregnancy.
- (11) Cardiac arrest.
- (12) Respiratory arrest.
- (13) Renal failure.
- (14) Shock.
- (15) Amniotic fluid embolism.
- (16) Coma.
- (17) Placenta previa in subsequent pregnancies.
- (18) Pre-term delivery in subsequent pregnancies.



- (19) Free fluid in the abdomen.
 - (20) Hemolytic reaction due to the administration of ABO-incompatible blood or blood products.
 - (21) Hypoglycemia occurring while the patient is being treated at the hospital or ambulatory outpatient surgical center.
 - (22) Allergic reaction to anesthesia. ~~or abortion inducing drugs.~~
 - (23) Psychological complications, including depression, suicidal ideation, anxiety, and sleeping disorders.
 - (24) Death.
 - (25) Any other adverse event as defined by criteria provided in the Food and Drug Administration Safety Information and Adverse Event Reporting Program.
- (b) The following persons shall report to the state department each case in which the person treated a patient suffering from an abortion complication:
- (1) A physician licensed under IC 25-22.5.
 - (2) A hospital licensed under IC 16-21.
 - (3) Beginning September 1, 2022, an ambulatory outpatient surgical center licensed under IC 16-21-2.
- (c) The state department shall develop a process for the submission of a report under this section.
- (d) A report under this section shall be submitted to the state department in the manner prescribed by the state department.
- (e) The report under this section must include the following information concerning the abortion complication:
- (1) The date the patient presented for treatment for the abortion complication.
 - (2) The age of the patient.
 - (3) The race of the patient.
 - (4) The county and state of the patient's residence.
 - (5) The type of abortion obtained by the patient.
 - (6) The date of abortion obtained by the patient.
 - (7) The name of the:
 - (A) hospital; or
 - (B) ambulatory outpatient surgical center;
 where the patient obtained the abortion.
 - (8) Whether the abortion was performed or occurred in Indiana or outside Indiana.**
 - ~~(8)~~ **(9)** Whether the patient obtained abortion medication via mail order or ~~Internet web site~~, **website**, and if so, information identifying the source of the medication.
 - ~~(9)~~ **(10)** Whether the complication was previously managed by the



1 abortion provider or the abortion provider's required back-up
2 physician.

3 ~~(+0)~~ **(11)** The name of the medications taken by the patient as part
4 of the pharmaceutical abortion regimen, if any.

5 ~~(+1)~~ **(12)** A list of each diagnosed complication.

6 ~~(+2)~~ **(13)** A list of each treated complication, with a description of
7 the treatment provided.

8 ~~(+3)~~ **(14)** Whether the patient's visit to treat the complications was
9 the original visit or a follow-up visit.

10 ~~(+4)~~ **(15)** The date of each follow-up visit, if any.

11 ~~(+5)~~ **(16)** A list of each complication diagnosed at a follow-up
12 visit, if any.

13 ~~(+6)~~ **(17)** A list of each complication treated at a follow-up visit,
14 if any.

15 **(18) The location, including the facility name and city or town,**
16 **where the patient presented for treatment of the abortion**
17 **complication.**

18 **(19) The full name of the health care provider who provided**
19 **treatment for the abortion complication.**

20 **(f) The state department shall send each report received under**
21 **this section to the office of the inspector general.**

22 ~~(+)~~ **(g)** On a quarterly basis, the state department shall compile a
23 public report summarizing the information collected under this section.
24 The report must include statistics for the previous calendar quarter,
25 with updated information for the most recent calendar quarter.

26 ~~(+g)~~ **(h)** The state department shall summarize the aggregate data
27 from the data submitted under this section and submit the data, on or
28 before June 30 of each year, to the United States Centers for Disease
29 Control and Prevention for its inclusion in the annual Vital Statistics
30 Report.

31 ~~(+h)~~ **(i)** The state department shall ensure that no identifying
32 information of a pregnant woman is included in the report described in
33 subsection ~~(+)~~ **(g).**

34 ~~(+i)~~ **(j)** This subsection applies after August 31, 2020. Each failure to
35 report an abortion complication as required under this section is a Class
36 B misdemeanor.

37 ~~(+j)~~ **(k)** The state department shall adopt rules under IC 4-22-2 to
38 implement this section.

39 SECTION 10. IC 16-34-3-2, AS AMENDED BY P.L.179-2022(ss),
40 SECTION 29, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
41 JULY 1, 2026]: Sec. 2. (a) A pregnant woman who has an abortion
42 under this article has the right to have the hospital or ambulatory



1 outpatient surgical center dispose of the aborted fetus by interment in
 2 compliance with IC 23-14-54, or cremation through a licensee (as
 3 defined in IC 25-15-2-19) and in compliance with IC 23-14-31. The
 4 pregnant woman who selects to have the hospital or ambulatory
 5 outpatient surgical center dispose of the aborted fetus has the right to
 6 ask which method will be used by the hospital or ambulatory outpatient
 7 surgical center.

8 (b) After receiving the notification and information required by
 9 IC 16-34-2-1.1(a)(2)(H) **and** IC 16-34-2-1.1(a)(2)(I), ~~and~~
 10 ~~IC 16-34-2-1.1(a)(2)(J)~~, the pregnant woman shall inform the hospital
 11 or ambulatory outpatient surgical center:

12 (1) in writing; and

13 (2) on a form prescribed by the state department;

14 of the pregnant woman's decision for final disposition of the aborted
 15 fetus by cremation or interment, ~~and, in an abortion induced by an~~
 16 ~~abortion inducing drug, whether the pregnant woman will return the~~
 17 ~~aborted fetus to the hospital or ambulatory outpatient surgical center~~
 18 ~~for disposition by interment~~ in compliance with IC 23-14-54, or
 19 cremation through a licensee (as defined in IC 25-15-2-19) and in
 20 compliance with IC 23-14-31.

21 (c) If the pregnant woman is a minor, the hospital or ambulatory
 22 outpatient surgical center shall obtain parental consent in the
 23 disposition of the aborted fetus unless the minor has received a waiver
 24 of parental consent under IC 16-34-2-4.

25 (d) The hospital or ambulatory outpatient surgical center shall
 26 document the pregnant woman's decision concerning disposition of the
 27 aborted fetus in the pregnant woman's medical record.

28 ~~(e) In the case of an abortion induced by an abortion inducing drug,~~
 29 ~~the pregnant woman may return the aborted fetus to the hospital or~~
 30 ~~ambulatory outpatient surgical center for disposition by interment in~~
 31 ~~compliance with IC 23-14-54, or cremation through a licensee (as~~
 32 ~~defined in IC 25-15-2-19) and in compliance with IC 23-14-31.~~

33 SECTION 11. IC 16-34-3-4, AS AMENDED BY P.L.179-2022(ss),
 34 SECTION 31, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 35 JULY 1, 2026]: Sec. 4. (a) A hospital or ambulatory outpatient surgical
 36 center having possession of an aborted fetus shall provide for the final
 37 disposition of the aborted fetus. The burial transit permit requirements
 38 of IC 16-37-3 apply to the final disposition of an aborted fetus, which
 39 must be interred or cremated. However:

40 (1) a person is not required to designate a name for the aborted
 41 fetus on the burial transit permit and the space for a name may
 42 remain blank; and



(2) any information submitted under this section that may be used to identify the pregnant woman is confidential and must be redacted from any public records maintained under IC 16-37-3. Aborted fetuses may be cremated by simultaneous cremation.

(b) If the hospital or ambulatory outpatient surgical center conducts the cremation of aborted fetal remains on site, the hospital or ambulatory outpatient surgical center must comply with all state laws concerning the cremation of human remains as prescribed in IC 23-14-31. The hospital or ambulatory outpatient surgical center must make the onsite cremation equipment available to the state department for inspection at the time the hospital or ambulatory outpatient surgical center is inspected. When the hospital or ambulatory outpatient surgical center contracts with a licensed funeral home for the disposal of the aborted fetal remains, the contract must be made available for review by the state department at the time the hospital or ambulatory outpatient surgical center is inspected.

(c) Except in extraordinary circumstances where the required information is unavailable or unknown, a burial transit permit issued under IC 16-37-3 that includes multiple fetal remains must be accompanied by a log prescribed by the state department containing the following information about each fetus included under the burial transit permit:

(1) The date of the abortion.

~~(2) Whether the abortion was surgical or induced by an abortion inducing drug.~~

~~(3)~~ (2) The name of the funeral director licensee who will be retrieving the aborted fetus.

~~(4) In the case of an abortion induced by an abortion inducing drug:~~

~~(A) whether the pregnant woman will cremate or inter the fetus; or will return the fetus to the hospital or ambulatory outpatient surgical center for disposition; and~~

~~(B) if the pregnant woman returns the fetus to the hospital or ambulatory outpatient surgical center; whether the returned fetus is included in the burial transit permit.~~

The hospital or ambulatory outpatient surgical center must keep a copy of the burial transit permit and accompanying log in a permanent file.

(d) Each time the fetal remains are transported from one entity to another for disposition, the entity receiving the fetal remains must confirm that the number of fetal remains matches the information contained in the burial transit permit and accompanying log. After final disposition, a copy of the log will be sent back to the hospital or



ambulatory outpatient surgical center. The final log will be attached to the original log described in subsection (c) and will be made available for review by the state department at the time of inspection.

(e) A hospital or ambulatory outpatient surgical center is responsible for demonstrating to the state department that the hospital or ambulatory outpatient surgical center has complied with the protocol provided in this section.

(f) A certificate of stillbirth is not required to be issued for an aborted fetus with a gestational age of less than twenty (20) weeks of age.

(g) IC 23-14-31-26, IC 23-14-55-2, IC 25-15-9-18, and IC 29-2-19-17 concerning the authorization of disposition of human remains apply to this section.

SECTION 12. IC 16-34-7 IS ADDED TO THE INDIANA CODE AS A NEW CHAPTER TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]:

Chapter 7. Abortion Inducing Drugs

Sec. 1. (a) This chapter does not apply to and a civil action under this chapter may not be brought against:

- (1) a hospital or health facility licensed, owned, maintained, or operated by the state;**
- (2) a physician or health care provider who is:**
 - (A) licensed by the state; and**
 - (B) located in Indiana;**
- (3) an Internet service provider or an affiliate of subsidiary of an Internet service provider;**
- (4) an Internet service engine;**
- (5) a cloud service provider providing access or connection to or from:**
 - (A) a website;**
 - (B) other information or content on the Internet;**
 - (C) a facility, system, or network that is not under the provider's control, including:**
 - (i) transmission;**
 - (ii) downloading;**
 - (iii) intermediate storage; or**
 - (iv) access software.**

(b) This chapter does not apply to the transport of an abortion inducing drug from a person in another state in continuous transit through Indiana to a person in another state.

Sec. 2. This chapter may not be construed to require the actual performance, inducement, or attempted performance of an



1 abortion in order for a person to bring a civil action under this
2 chapter.

3 Sec. 3. The following definitions apply throughout this chapter:

4 (1) "Delivery network company" has the meaning set forth in
5 IC 8-2.1-17-5.3.

6 (2) "DNC driver" has the meaning set forth in IC 8-2.1-17-5.7.

7 (3) "Health facility" means a building, a structure, an
8 institution, or other place for the reception, accommodation,
9 board, care, or treatment extending beyond a continuous
10 twenty-four (24) hour period in a week of more than four (4)
11 individuals who need or desire such services because of
12 physical or mental illness, infirmity, or impairment. The term
13 does not include a hospital.

14 (4) "Physician" means an individual licensed to practice
15 medicine in Indiana, include a medical doctor and a doctor of
16 osteopathic medicine.

17 Sec. 4. (a) Except as provided by subsection (b), a person may
18 not knowingly or intentionally:

19 (1) manufacture, distribute, or possess an abortion inducing
20 drug; or

21 (2) mail, transport, deliver, prescribe, or provide an abortion
22 inducing drug in any manner to or from any person or
23 location in Indiana.

24 (b) Subsection (a) does not prohibit:

25 (1) speech or conduct protected by the First Amendment to
26 the Constitution of the United States, as made applicable to
27 the states through the United States Supreme Court's
28 interpretation of the Fourteenth Amendment to the
29 Constitution of the United States, or protected by Article 1,
30 Section 9 of the Constitution of the State of Indiana;

31 (2) conduct that a pregnant woman takes in the course of
32 aborting or attempting to abort the woman's unborn child;

33 (3) the manufacture, distribution, mailing, transport, delivery,
34 prescribing, provision, or possession of an abortion inducing
35 drug solely for purposes that do not include performing,
36 inducing, attempting, assisting, or aiding or abetting an illegal
37 abortion; or

38 (4) conduct that a person takes under the direction of a
39 federal agency, contractor, or employee to carry out a duty
40 under federal law, if prohibiting that conduct would violate
41 the doctrine of preemption or intergovernmental immunity.

42 Sec. 5. (a) Notwithstanding any other law, the prohibitions in



1 section 4 of this chapter may be enforced only through a wrongful
 2 death action brought under section 6 of this chapter or a qui tam
 3 action brought under section 9 of this chapter.

4 (b) No other direct or indirect enforcement of section 4 of this
 5 chapter may be taken or threatened by:

- 6 (1) the State of Indiana;
- 7 (2) a political subdivision of the state;
- 8 (3) a prosecuting attorney;
- 9 (4) a county attorney;
- 10 (5) any officer or employee of the state; or
- 11 (6) any officer or employee of a political subdivision of the
- 12 state;

13 against any person, except through a wrongful death action
 14 brought under section 6 of this chapter or a qui tam action brought
 15 under section 9 of this chapter.

16 (c) This section does not preclude or limit the enforcement of
 17 any other law or regulation against conduct that is independently
 18 prohibited by the other law or regulation and that would remain
 19 prohibited by the other law or regulation in the absence of section
 20 4 of this chapter.

21 Sec. 6. (a) Notwithstanding any other law, and except as
 22 provided in subsections (b) and (f), a person who manufactures,
 23 distributes, mails, transports, delivers, prescribes, or provides an
 24 abortion inducing drug, or who aids or abets the manufacture,
 25 distribution, mailing, transportation, delivery, prescription, or
 26 provision of an abortion inducing drug, is strictly, absolutely, and
 27 jointly and severally liable for:

- 28 (1) the wrongful death of an unborn child or pregnant woman
- 29 from the use of the abortion inducing drug; and
- 30 (2) personal injury of an unborn child or pregnant woman
- 31 from the use of the abortion inducing drug.

32 (b) A claimant may not bring an action under this section if the
 33 action is preempted by 47 U.S.C. 230(c).

34 (c) A person who engages in conduct described by subsection (a)
 35 is liable for damages resulting from the death or personal injury
 36 sustained by an unborn child or pregnant woman if the person's
 37 conduct contributed in any way to the death or injury, regardless
 38 of whether the person's conduct was the actual or proximate cause
 39 of the death or injury.

40 (d) Notwithstanding any other law, the mother or father of an
 41 unborn child may bring a civil action under this section for the
 42 wrongful death of the unborn child from the use of an abortion



1 inducing drug, regardless of whether the other parent brings a civil
 2 action for the wrongful death. The biological father of an unborn
 3 child may bring the action regardless of whether the father was
 4 married to the unborn child's mother at the time of the unborn
 5 child's conception or death.

6 (e) Notwithstanding any other law, a civil action may not be
 7 brought under this section:

8 (1) against the woman who used or sought to obtain abortion
 9 inducing drugs to abort or attempt to abort her unborn child;

10 (2) against a person that acted under the direction of a federal
 11 agency, contractor, or employee who is carrying out duties
 12 under federal law if the imposition of liability would violate
 13 the doctrine of preemption or intergovernmental immunity;

14 (3) by any person who has committed a sex crime as defined
 15 in IC 35-42-4, or by another person who acts in concert or
 16 participation with such a person;

17 (4) against a transportation network company or a driver for
 18 using a transportation network company's digital network to
 19 provide a digitally prearranged ride;

20 (5) against a delivery network company or a DNC driver for
 21 using a delivery network company's digital network to
 22 provide a digitally prearranged delivery;

23 (6) against a person described in section 1 of this chapter; or

24 (7) against a common carrier that took every reasonable
 25 precaution to ensure that the common carrier would not
 26 manufacture, distribute, mail, transport, deliver, prescribe,
 27 provide, possess, or aid or abet the manufacture, distribution,
 28 mailing, transportation, delivery, prescription, provision, or
 29 possession of abortion inducing drugs for the purpose of
 30 performing, inducing, attempting, or assisting an illegal
 31 abortion, including by adopting a policy that the common
 32 carrier will not manufacture, distribute, mail, transport,
 33 deliver, prescribe, provide, possess, or aid or abet the
 34 manufacture, distribution, mailing, transportation, delivery,
 35 prescription, provision, or possession of abortion inducing
 36 drugs for this purpose.

37 (f) Notwithstanding any other law, including Trial Rule 23 of the
 38 Indiana Rules of Trial Procedure, an action brought under this
 39 section may not be litigated on behalf of a claimant class or a
 40 defendant class, and a court may not certify a class in the action.

41 Sec. 7. (a) It is an affirmative defense to an action brought under
 42 section 6 of this chapter that the defendant:



(1) was unaware the defendant was engaged in the conduct described by section 6(a) of this chapter; and

(2) took every reasonable precaution to ensure the defendant would not manufacture, distribute, mail, transport, deliver, prescribe, provide, or possess abortion inducing drugs.

(b) A defendant has the burden of proving an affirmative defense under subsection (a) by a preponderance of the evidence.

(c) Notwithstanding any other law, the following are not a defense to an action brought under section 6 of this chapter:

(1) A defendant's ignorance or mistake of law, including a defendant's mistaken belief that the requirements or provisions of this chapter are unconstitutional or were unconstitutional.

(2) A defendant's reliance on a court decision that has been vacated, reversed, or overruled on appeal or by a subsequent court, even if the court decision had not been vacated, reversed, or overruled when the cause of action accrued.

(3) A defendant's reliance on a state or federal court decision that is not binding on the court in which the action has been brought.

(4) A defendant's reliance on a federal statute, agency rule or action, or treaty that has been repealed, superseded, or declared invalid or unconstitutional, even if the federal statute, agency rule or action, or treaty had not been repealed, superseded, or declared invalid or unconstitutional when the cause of action accrued.

(5) The laws of another state or jurisdiction, including an abortion shield law, unless the Constitution of the State of Indiana or federal law compels the court to enforce that law.

(6) Nonmutual issue preclusion or nonmutual claim preclusion.

(7) The consent of the claimant or the unborn child's mother to the abortion.

(8) Contributory or comparative negligence.

(9) Assumption of risk.

(10) Lack of actual or proximate cause.

(11) Sovereign immunity, governmental immunity, or official immunity, except that sovereign immunity, governmental immunity, or official immunity is not waived for:

(A) a hospital owned and operated by the state that facilitates or makes available abortion inducing drugs solely for purposes that do not include performing,



1 inducing, attempting, assisting, or aiding or abetting an
2 illegal abortion; or

3 (B) a political subdivision, including a hospital district, that
4 facilitates or makes available abortion inducing drugs
5 solely for purposes that do not include performing,
6 inducing, attempting, assisting, or aiding or abetting an
7 illegal abortion.

8 (12) A claim that the enforcement of this chapter or the
9 imposition of civil liability against the defendant will violate
10 the constitutional or federally protected rights of third
11 parties.

12 Sec. 8. (a) Notwithstanding any other law, and except as
13 provided in subsection (b), if a claimant who brings an action
14 under section 6 of this chapter is unable to identify the specific
15 manufacturer of the abortion inducing drug that caused the death
16 or injury that is the basis for the action, the liability is apportioned
17 among all manufacturers of abortion inducing drugs in proportion
18 to each manufacturer's share of the national market for abortion
19 inducing drugs at the time the death or injury occurred.

20 (b) A manufacturer is not subject to liability under this section
21 if it manufactures abortion inducing drugs solely for purposes that
22 do not include performing, inducing, attempting, or assisting, or
23 aiding or abetting an illegal abortion.

24 Sec. 9. (a) A person, other than the state of Indiana, a political
25 subdivision of the state, or an officer or employee of the state or a
26 political subdivision of the state, has standing to bring and may
27 bring a qui tam action against any person who:

28 (1) violates section 4 of this chapter; or

29 (2) intends to violate section 4 of this chapter.

30 (b) An action brought under this section must be brought in the
31 name of the qui tam relator, who is an assignee of the state's claim
32 for relief. Notwithstanding any other law, the transfer of the state's
33 claim to the qui tam relator is absolute, with the state retaining no
34 interest in the subject matter of the claim.

35 (c) A qui tam relator may not bring an action under this section
36 if the action is preempted by 47 U.S.C. 230(c).

37 (d) A qui tam action may not be brought under this section:

38 (1) against a woman for using, obtaining, or seeking to obtain
39 abortion inducing drugs to abort or attempt to abort her
40 unborn child;

41 (2) against a person acting under the direction of a federal
42 agency, contractor, or employee who is carrying out a duty



under federal law if the imposition of liability would violate the doctrine of preemption or intergovernmental immunity; (3) by any person who has committed a sex crime as defined in IC 35-42-4, or by another person who acts in concert or participation with such a person;

(4) against a transportation network company or a driver for using a transportation network company's digital network to provide a digitally prearranged ride;

(5) against a delivery network company or a DNC driver for using a delivery network company's digital network to provide a digitally prearranged delivery;

(6) against a person described in section 1 of this chapter; or

(7) against a common carrier that took reasonable precautions to ensure that the common carrier would not manufacture, distribute, mail, transport, deliver, prescribe, provide, possess, or aid or abet the manufacture, distribution, mailing, transportation, delivery, prescription, provision, or possession of abortion inducing drugs for the purpose of performing, inducing, attempting, or assisting an illegal abortion, including by adopting a policy that the common carrier will not manufacture, distribute, mail, transport, deliver, prescribe, provide, possess, or aid or abet the manufacture, distribution, mailing, transportation, delivery, prescription, provision, or possession of abortion inducing drugs for this purpose.

(e) Notwithstanding any other law, including Trial Rule 23 of the Indiana Rules of Trial Procedure, an action brought under this section may not be litigated on behalf of a claimant class or a defendant class, and a court may not certify a class in the action.

Sec. 10. (a) It is an affirmative defense to an action brought under section 9 of this chapter that the defendant:

(1) was unaware the defendant was engaged in the conduct prohibited by section 4 of this chapter; and

(2) took reasonable precautions to ensure the defendant would not violate section 4 of this chapter.

(b) The defendant has the burden of proving an affirmative defense under this section by a preponderance of the evidence.

(c) The following are not defenses to an action brought under section 9 of this chapter:

(1) A defendant's ignorance or mistake of law, including a defendant's mistaken belief that the requirements or provisions of this chapter are unconstitutional or were



1 unconstitutional.

2 (2) A defendant's reliance on a court decision that has been
3 vacated, reversed, or overruled on appeal or by a subsequent
4 court, even if the court decision had not been vacated,
5 reversed, or overruled when the cause of action accrued.

6 (3) A defendant's reliance on a state or federal court decision
7 that is not binding on the court in which the action has been
8 brought.

9 (4) A defendant's reliance on a federal agency rule or action
10 that has been repealed, superseded, or declared invalid or
11 unconstitutional, even if the federal agency rule or action had
12 not been repealed, superseded, or declared invalid or
13 unconstitutional when the cause of action accrued.

14 (5) The laws of another state or jurisdiction, including an
15 abortion shield law, unless the Constitution of the State of
16 Indiana or federal law compels the court to enforce that law.

17 (6) Nonmutual issue preclusion or nonmutual claim
18 preclusion.

19 (7) Sovereign immunity, governmental immunity, or official
20 immunity, other than sovereign immunity, governmental
21 immunity, or official immunity applicable to:

22 (A) a hospital owned and operated by the state that
23 facilitates or makes available abortion inducing drugs
24 solely for purposes that do not include performing,
25 inducing, attempting, assisting, or aiding or abetting an
26 illegal abortion; or

27 (B) a political subdivision, including a hospital district, that
28 facilitates or makes available abortion inducing drugs
29 solely for purposes that do not include performing,
30 inducing, attempting, assisting, or aiding or abetting an
31 illegal abortion.

32 (8) A claim that the enforcement of this chapter or the
33 imposition of civil liability against the defendant will violate
34 the constitutional or federally protected rights of third
35 parties.

36 (9) Consent to the abortion by the claimant or the unborn
37 child's mother.

38 Sec. 11. (a) Notwithstanding any other law and except as
39 provided in subsection (b), if a qui tam relator prevails in an action
40 brought under section 9 of this chapter, the court shall award to
41 the relator:

42 (1) injunctive relief sufficient to prevent the defendant from



violating section 4 of this chapter;

(2) an amount of not less than one hundred thousand dollars (\$100,000) for each violation of section 4 of this chapter; and

(3) costs and reasonable attorney's fees.

(b) A court may not award relief under subsection (a)(2) or (a)(3) in response to a violation of section 4 of this chapter if the defendant demonstrates that:

(1) a court previously ordered the defendant to pay an amount under subsection (a)(2) in another action for that particular violation; and

(2) the court order described by subdivision (1) has not been vacated, reversed, or overturned.

(c) Notwithstanding any other law, a court may not award costs or attorney's fees to a defendant against whom an action is brought under section 6 or 9 of this chapter except:

(1) in response to frivolous, malicious, or bad faith conduct; or

(2) as required by federal law.

Sec. 12. Notwithstanding any other law, a person may bring an action under section 6 or 9 of this chapter not later than twenty (20) years after the date on which the cause of action accrues.

Sec. 13. (a) It is an affirmative defense to an action brought under section 6 or 9 of this chapter that:

(1) the imposition of civil liability on the defendant will violate the defendant's rights under federal law, including the Constitution of the United States;

(2) the defendant:

(A) has standing to assert the rights of a third party under the tests for third party standing established by the United States Supreme Court; and

(B) demonstrates that the imposition of civil liability on the defendant will violate the third party's rights under federal law, including the Constitution of the United States;

(3) the imposition of civil liability on the defendant will violate the defendant's rights under the Constitution of the State of Indiana; or

(4) the imposition of civil liability on the defendant will violate limits on extraterritorial jurisdiction imposed by the Constitution of the United States or the Constitution of the State of Indiana.

(b) The defendant has the burden of proving an affirmative defense under subsection (a) by a preponderance of the evidence.



1 (c) Notwithstanding any other law, this chapter does not impose
2 liability for:

3 (1) death or personal injury resulting from an abortion
4 described in IC 16-34-2-1(a)(1), IC 16-34-2-1(a)(2), or
5 IC 16-34-2-1(a)(3);

6 (2) the manufacture, distribution, mailing, transportation,
7 delivery, prescription, provision, or possession of an abortion
8 inducing drug for the purpose of performing, inducing,
9 attempting, or assisting, or aiding or abetting an abortion
10 described in IC 16-34-2-1(a)(1), IC 16-34-2-1(a)(2), or
11 IC 16-34-2-1(a)(3);

12 (3) speech or conduct protected by the First Amendment to
13 the Constitution of the United States, as made applicable to
14 the states through the United States Supreme Court's
15 interpretation of the Fourteenth Amendment to the
16 Constitution of the United States, or protected by Article 1,
17 Section 9 of the Constitution of the State of Indiana;

18 (4) conduct that this state is prohibited from regulating under
19 the Constitution of the State of Indiana or federal law,
20 including the Constitution of the United States;

21 (5) conduct taken by a pregnant woman in the course of
22 aborting or seeking to abort her unborn child; or

23 (6) conduct that a person engages in under the direction of a
24 federal agency, contractor, or employee to carry out a duty
25 under federal law, if a prohibition on that conduct would
26 violate the doctrine of preemption or intergovernmental
27 immunity.

28 Sec. 14. Notwithstanding any other law, a waiver or purported
29 waiver of the right to bring an action under section 6 or 9 of this
30 chapter is void as against public policy and is not enforceable in
31 any court.

32 Sec. 15. (a) Notwithstanding any other law, the courts of the
33 state have personal jurisdiction over a defendant sued under
34 section 6 or 9 of this chapter to the maximum extent permitted by
35 the Fourteenth Amendment to the Constitution of the United States
36 and the defendant may be served outside Indiana.

37 (b) Notwithstanding any other law, Indiana law applies to the
38 use of an abortion inducing drug by a resident, regardless of where
39 the use of the drug occurs, and to an action brought under section
40 6 or 9 of this chapter, to the maximum extent permitted by the
41 Constitution of the State of Indiana and federal law, including the
42 Constitution of the United States.



(c) Notwithstanding any other law, any contractual choice-of-law provision that requires or purports to require application of the laws of a different jurisdiction is void based on the state's public policy and is not enforceable in any court.

(d) Notwithstanding any other law, IC 34-7-7 and IC 34-13-9 do not apply to an action brought under section 6 or 9 of this chapter.

(e) Notwithstanding any other law, a court may not apply the law of another state or jurisdiction to an action brought under section 6 or 9 of this chapter unless the Constitution of the State of Indiana or federal law compels the court to apply that law.

Sec. 16. (a) Notwithstanding any other law, the state, a political subdivision of the state, or an officer or employee of the state or a political subdivision of the state may not:

- (1) act in concert or participation with a claimant bringing an action under section 6 or 9 of this chapter;
- (2) establish or attempt to establish any type of agency or fiduciary relationship with a claimant bringing an action under section 6 or 9 of this chapter;
- (3) attempt to control or influence a person's decision to bring an action under section 6 or 9 of this chapter or that person's conduct of the litigation; or
- (4) intervene in an action brought under section 6 or 9 of this chapter

(b) This section does not prohibit the state, a political subdivision of the state, or an officer or employee of the state or a political subdivision of the state from filing an amicus curiae brief in an action brought under section 6 or 9 of this chapter if the state, the political subdivision, the officer, or the employee does not act in concert or participation with the claimant who brings the action.

Sec. 17. (a) Notwithstanding any other law, including the Indiana Rules of Trial Procedure, an action brought under section 6 or 9 of this chapter may be brought in:

- (1) the county in which all or a substantial part of the events or omissions giving rise to the claim occurred;
- (2) the county of a defendant's residence at the time the cause of action accrued if a defendant is an individual;
- (3) the county of the principal office in the state of a defendant that is not an individual; or
- (4) the county of the claimant's residence if the claimant is an individual residing in Indiana.

(b) If an action brought under section 6 or 9 of this chapter is brought in a venue described by subsection (a), the action may not



1 be transferred to a different venue without the written consent of
2 all parties.

3 (c) Notwithstanding any other law, any contractual
4 choice-of-forum provision that requires or purports to require an
5 action brought under section 6 or 9 of this chapter to be litigated
6 in a particular forum is void based on the state's public policy and
7 is not enforceable in any court.

8 Sec. 18. (a) The attorney general has parens patriae standing to
9 bring an action under this section on behalf of unborn children of
10 residents of Indiana.

11 (b) Except as provided by subsection (c), the attorney general
12 may bring an action for damages or injunctive relief on behalf of
13 an unborn child of a resident of Indiana against any person who,
14 with the intent of performing, inducing, attempting, assisting, or
15 aiding or abetting an illegal abortion:

16 (1) violates 18 U.S.C. 1461 through 18 U.S.C. 1462 by using
17 the mails for the mailing, carriage in the mails, or delivery of:

18 (A) any article or thing designed, adapted, or intended for
19 producing abortion; or

20 (B) any article, instrument, substance, drug, medicine, or
21 thing which is advertised or described in a manner
22 calculated to lead another to use or apply it for producing
23 abortion;

24 (2) violates 18 U.S.C. 1462 by:

25 (A) using any express company or other common carrier
26 or interactive computer service for carriage in interstate
27 or foreign commerce of any drug, medicine, article, or
28 thing designed, adapted, or intended for producing
29 abortion; or

30 (B) knowingly taking or receiving, from such express
31 company or other common carrier or interactive computer
32 service, any matter or thing described in subdivision (1); or

33 (3) aids or abets the violations of 18 U.S.C. 1461 or 18 U.S.C.
34 1462 described in subdivisions (1) and (2).

35 (c) Notwithstanding any other law, an action under this section
36 may not be brought:

37 (1) against a woman for conduct taken in the course of
38 aborting or seeking to abort her unborn child;

39 (2) against a person that acted under the direction of a federal
40 agency, contractor, or employee who is carrying out duties
41 under federal law if the imposition of liability would violate
42 the doctrine of preemption or intergovernmental immunity;



(3) against a transportation network company or a driver for using a transportation network company's digital network to provide a digitally prearranged ride;

(4) against a delivery network company or a DNC driver for using a delivery network company's digital network to provide a digitally prearranged delivery;

(5) against a person described in section 1 of this chapter; or

(6) against a common carrier that took every reasonable precaution to ensure that the common carrier would not manufacture, distribute, mail, transport, deliver, prescribe, provide, possess, or aid or abet the manufacture, distribution, mailing, transportation, delivery, prescription, provision, or possession of abortion inducing drugs for the purpose of performing, inducing, attempting, or assisting an illegal abortion, including by adopting a policy that the common carrier will not manufacture, distribute, mail, transport, deliver, prescribe, provide, possess, or aid or abet the manufacture, distribution, mailing, transportation, delivery, prescription, provision, or possession of abortion inducing drugs for this purpose.

Sec. 19. (a) For purposes of this section, "clawback provision" refers to any law of another state or jurisdiction that authorizes the bringing of a civil action against a person for:

(1) bringing or engaging in an action authorized by this chapter, including an action brought under section 6, 9, or 18 of this chapter;

(2) bringing or engaging in an action that alleges a violation of any federal or state abortion law;

(3) attempting, intending, or threatening to bring or engage in an action described by subdivision (1) or (2); or

(4) providing legal representation or any type of assistance to a person who brings or engages in an action described by subdivision (1) or (2).

(b) Notwithstanding any other law and except as otherwise provided by federal law or the Constitution of the State of Indiana, Indiana law applies to:

(1) conduct described by subsection (a);

(2) an action brought against a person for engaging in conduct described by subsection (a);

(3) an action brought under a clawback provision against a resident of Indiana; and

(4) an action brought under subsection (f).



(c) Notwithstanding any other law, in an action described by subsection (a)(1), the court shall, on request, issue a temporary, preliminary, or permanent injunction that restrains each defendant in the action, each person in privity with the defendant, and each person with whom the defendant is in active concert or participation from:

(1) bringing an action under any clawback provision against a claimant or prosecutor, a person in privity with the claimant or prosecutor, or a person providing legal representation or any type of assistance to the claimant or prosecutor; and

(2) continuing to litigate an action under any clawback provision that has been brought against a claimant or prosecutor, a person in privity with the claimant or prosecutor, or a person providing legal representation or any type of assistance to the claimant or prosecutor.

(d) Notwithstanding any other law, the doctrines of res judicata and collateral estoppel preclude a defendant against whom a judgment is entered in an action described by subsection (a)(1) and each person in privity with the defendant from litigating or relitigating any claim or issue under any clawback provision against a claimant, prosecutor, or person in privity with the claimant or prosecutor that was raised or could have been raised as a claim, cross-claim, counterclaim, or affirmative defense under the Federal or Indiana Rules of Civil Procedure.

(e) Notwithstanding any other law, a court of Indiana may not enforce an out-of-state judgment obtained in an action brought under a clawback provision unless federal law or the Constitution of the State of Indiana requires the court to enforce the judgment.

(f) Notwithstanding any other law, if an action is brought or judgment is entered against a person under a clawback provision based wholly or partly on the person's decision to engage in conduct described by subsection (a), that person is entitled to injunctive relief and damages from any person who brought the action or obtained the judgment or who sought to enforce the judgment. Notwithstanding any other law, the relief described by this subsection must include:

(1) compensatory damages, including money damages in an amount equal to the judgment damages and costs, expenses, and reasonable attorney's fees spent in defending the action;

(2) costs, expenses, and reasonable attorney's fees incurred in bringing an action under this subsection;

(3) additional amounts consisting of the greater of:



(A) twice the sum of the damages, costs, expenses, and fees described by subdivisions (1) and (2); or

(B) one hundred thousand dollars (\$100,000); and

(4) injunctive relief that restrains each person who brought the action under the clawback provision, each person in privity with the person, and each person acting in concert or participation with the person from:

(A) bringing further actions under any clawback provision against the person against whom the action was brought, each person in privity with the person, or any person providing legal representation or any type of assistance to the person;

(B) continuing to litigate any actions brought under a clawback provision against the persons described by clause (A); and

(C) enforcing or attempting to enforce any judgment obtained in any actions brought under a clawback provision against the persons described by clause (A).

(g) It is not a defense to an action brought under subsection (f) that:

(1) the claimant failed to seek recovery under subsection (f) in an action brought against the claimant under a clawback provision; or

(2) a court in a preceding action brought against the claimant declined to recognize or enforce subsection (f) or held any provision of that subsection invalid, unconstitutional, or preempted by federal law, notwithstanding the doctrines of issue or claim preclusion.

(h) Notwithstanding any other law, IC 34-7-7 and IC 34-13-9 do not apply to an action brought under subsection (f).

Sec. 20. (a) Notwithstanding any other law, a person, including an entity, attorney, or law firm, who seeks declaratory or injunctive relief to prevent the state, a political subdivision of the state, an officer, employee, or agent of the state or a political subdivision of the state, or any person from enforcing or bringing an action to enforce a law, including a statute, ordinance, rule, or regulation, that regulates or restricts abortion or that limits taxpayer funding for persons performing or promoting abortions in any state or federal court, or who represents a litigant seeking such relief in any state or federal court, is jointly and severally liable to pay the costs and reasonable attorney's fees of the prevailing party, including the costs and reasonable attorney's fees



1 the prevailing party incurs in its efforts to recover costs and fees.

2 (b) For purposes of this section, a party is considered a
3 prevailing party if:

4 (1) a state or federal court dismisses a claim or cause of action
5 brought against the party by a litigant that seeks the
6 declaratory or injunctive relief described by subsection (a),
7 regardless of the reason for the dismissal;

8 (2) a state or federal court enters judgment in the party's
9 favor on that claim or cause of action; or

10 (3) the litigant that seeks the declaratory or injunctive relief
11 described by subsection (a) voluntarily dismisses or nonsuits
12 its claims against the party under Rule 41 of the Federal Rules
13 of Civil Procedure, or any other procedural rule.

14 (c) A prevailing party may recover costs and reasonable
15 attorney's fees under this section only to the extent that the costs
16 and attorney's fees were incurred while defending claims or causes
17 of action on which the party prevailed.

18 (d) Regardless of whether a prevailing party sought to recover
19 costs or attorney's fees in the underlying action, a prevailing party
20 under this section may bring a civil action to recover costs and
21 attorney's fees against a person, including an entity, attorney, or
22 law firm, who sought declaratory or injunctive relief described by
23 subsection (a) not later than three (3) years after the date on which,
24 as applicable:

25 (1) the dismissal or judgment described by subsection (b)
26 becomes final on the conclusion of appellate review; or

27 (2) the time for seeking appellate review expires.

28 (e) It is not a defense to a civil action brought under subsection
29 (d) that:

30 (1) a prevailing party under this section failed to seek
31 recovery of costs or attorney's fees in the underlying action;

32 (2) the court in the underlying action declined to recognize or
33 enforce this section; or

34 (3) the court in the underlying action held that any provisions
35 of this section are invalid, unconstitutional, or preempted by
36 federal law, notwithstanding the doctrine of issue or claim
37 preclusion.

38 (f) Notwithstanding any other law, a civil action brought under
39 subsection (d) may be brought in:

40 (1) the county in which all or a substantial part of the events
41 or omissions giving rise to the claim occurred;

42 (2) the county of residence of a defendant at the time the cause



of action accrued, if the defendant is an individual;

(3) the county of the principal office in the state of a defendant that is not an individual; or

(4) the county of residence of the claimant, if the claimant is an individual residing in Indiana.

(g) If a civil action is brought under subsection (d) in a venue described by subsection (f), the action may not be transferred to a different venue without the written consent of all parties.

(h) Notwithstanding any other law, any contractual choice-of-forum provision that purports to require a civil action under subsection (d) be litigated in another forum is void based on the state's public policy and is not enforceable in any state or federal court.

(i) Notwithstanding any other law, IC 34-7-7 and IC 34-13-9 do not apply to an action brought under subsection (d).

(j) A court may not award attorney's fees or costs under this section if the award would violate:

(1) the Constitution of the State of Indiana;

(2) the Constitution of the United States; or

(3) federal law.

Sec. 21. (a) Notwithstanding any other law, the state has sovereign immunity, a political subdivision of the state has governmental immunity, and an officer or employee of the state or a political subdivision of the state has official immunity (as well as sovereign or governmental immunity, as appropriate) in an action, claim, counterclaim, or any other type of legal or equitable action that:

(1) challenges the validity of any provision or application of this chapter, on constitutional grounds or otherwise; or

(2) seeks to prevent or enjoin the state, a political subdivision of the state, or an officer, employee, or agent of the state or a political subdivision of the state from:

(A) enforcing any provision or application of this chapter; or

(B) filing, hearing, adjudicating, or docketing an action brought under section 6, 9, 18, or 20 of this chapter.

(b) Notwithstanding any other law, the immunities described in or conferred by this section apply in court, and in every type of adjudicative proceeding.

(c) Notwithstanding any other law, a provision of Indiana law may not be construed to waive or abrogate an immunity conferred by this section unless it expressly waives or abrogates immunity



1 with specific reference to this section.

2 (d) Notwithstanding any other law, an attorney representing the
3 state, a political subdivision of the state, or an officer or employee
4 of the state or a political subdivision of the state may not waive an
5 immunity conferred by this section or take an action that would
6 result in a waiver of that immunity. A purported waiver or action
7 described by this subsection is considered void and an ultra vires
8 act.

9 Sec. 22. Notwithstanding any other law, including IC 34-14-1, a
10 court of the state does not have jurisdiction to consider and may
11 not award relief under any action, claim, or counterclaim that:

12 (1) seeks declaratory or injunctive relief, or any type of writ,
13 including a writ of prohibition, that would pronounce any
14 provision or application of this article invalid or
15 unconstitutional; or

16 (2) would restrain the state, a political subdivision of the state,
17 an officer, employee, or agent of the state or a political
18 subdivision of the state, or any person from:

19 (A) enforcing any provision or application of this article;
20 or

21 (B) filing, hearing, adjudicating, or docketing an action
22 brought under section 6, 9, 18, or 20 of this chapter.

23 Sec. 23. This chapter may not be construed to prevent a litigant
24 from asserting the invalidity or unconstitutionality of a provision
25 or application of this chapter as a defense to an action, claim, or
26 counterclaim brought against the litigant.

27 SECTION 13. IC 34-6-2.1-84, AS AMENDED BY P.L.186-2025,
28 SECTION 274, IS AMENDED TO READ AS FOLLOWS
29 [EFFECTIVE JULY 1, 2026]: Sec. 84. (a) "Health care services":

30 (1) except as provided in subdivision (2), for purposes of
31 IC 34-30-13, has the meaning set forth in IC 27-13-1-18(a); and

32 (2) for purposes of IC 34-30-13-1.2, means only noninvasive
33 examinations, treatments, and procedures and the following
34 invasive procedures:

35 (A) Routine dental services.

36 (B) Injections.

37 (C) Suturing of minor lacerations.

38 (D) Incisions of boils or superficial abscesses.

39 The term does not include performance of an abortion, including
40 abortion by surgical means, by use of an abortion inducing drug
41 in violation of IC 16-34-7, or by prescribing a controlled
42 substance or scheduled drug under IC 35-48.



- 1 (b) "Health care services", for purposes of IC 34-30-13.5, means:
- 2 (1) any services provided by an individual licensed under:
- 3 (A) IC 25-2.5;
- 4 (B) IC 25-10;
- 5 (C) IC 25-13;
- 6 (D) IC 25-14;
- 7 (E) IC 25-19;
- 8 (F) IC 25-22.5;
- 9 (G) IC 25-23;
- 10 (H) IC 25-23.5;
- 11 (I) IC 25-23.6;
- 12 (J) IC 25-24;
- 13 (K) IC 25-26;
- 14 (L) IC 25-27;
- 15 (M) IC 25-27.5;
- 16 (N) IC 25-29;
- 17 (O) IC 25-33;
- 18 (P) IC 25-34.5; or
- 19 (Q) IC 25-35.6;
- 20 (2) services provided as the result of hospitalization, to an
- 21 individual admitted to a health facility licensed under IC 16-28,
- 22 or to a person residing in a housing with services establishment
- 23 (as defined by IC 12-10-15-3);
- 24 (3) services incidental to the furnishing of services described in
- 25 ~~subdivisions~~ **subdivision** (1) or (2);
- 26 (4) any services by individuals:
- 27 (A) licensed as paramedics;
- 28 (B) certified as advanced emergency medical technicians; or
- 29 (C) certified as emergency medical technicians under
- 30 IC 16-31;
- 31 (5) any services provided by individuals certified as emergency
- 32 medical responders under IC 16-31;
- 33 (6) any services provided by certified health care professionals
- 34 who are registered with the Indiana department of health and the
- 35 certified health care professions commission, including:
- 36 (A) certified nurse aides certified under IC 16-27.5-3;
- 37 (B) qualified medication aides certified under IC 16-27.5-4;
- 38 and
- 39 (C) home health aides registered under rules adopted under
- 40 IC 16-27.5-5;
- 41 (7) any services provided by unlicensed health care professionals
- 42 who have successfully completed any applicable training required



by the Indiana department of health;

(8) any services provided by health care volunteers who are permitted to practice during an event that is declared a disaster emergency under IC 10-14-3-12 to respond to COVID-19;

(9) any services provided by individuals with provisional or temporary licenses who are permitted to practice during an event that is declared a disaster emergency under IC 10-14-3-12 to respond to COVID-19; or

(10) any other services or goods furnished for the purpose of preventing, alleviating, curing, or healing human illness, physical disability, or injury.

SECTION 14. IC 34-7-7-1 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) This chapter applies to an act in furtherance of a person's right of petition or free speech under the Constitution of the United States or the Constitution of the State of Indiana in connection with a public issue or an issue of public interest that arises after June 30, 1998. This chapter does not apply to an action that was filed and is pending before July 1, 1998.

(b) This chapter does not apply to:

(1) an enforcement action brought in the name of the state of Indiana by the attorney general, a prosecuting attorney, or another attorney acting as a public prosecutor; **or**

(2) an action brought under:

(A) IC 16-34-7-6;

(B) IC 16-34-7-9;

(C) IC 16-34-7-18; or

(D) IC 16-34-7-20.

SECTION 15. IC 34-13-9-0.7, AS ADDED BY P.L.4-2015, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 0.7. This chapter does not:

(1) authorize a provider to refuse to offer or provide services, facilities, use of public accommodations, goods, employment, or housing to any member or members of the general public on the basis of race, color, religion, ancestry, age, national origin, disability, sex, sexual orientation, gender identity, or United States military service;

(2) establish a defense to a civil action or criminal prosecution for refusal by a provider to offer or provide services, facilities, use of public accommodations, goods, employment, or housing to any member or members of the general public on the basis of race, color, religion, ancestry, age, national origin, disability, sex, sexual orientation, gender identity, or United States military



1 service; ~~or~~

2 **(3) limit or curtail the scope of any law of the state of Indiana**
 3 **that regulates or restricts abortion or that withholds taxpayer**
 4 **funds from entities that perform or promote abortions; or**
 5 ~~(3)~~ **(4) negate any rights available under the Constitution of the**
 6 **State of Indiana.**

7 SECTION 16. IC 34-13-9-2, AS ADDED BY P.L.3-2015,
 8 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 9 JULY 1, 2026]: Sec. 2. **(a)** A governmental entity statute, ordinance,
 10 resolution, executive or administrative order, regulation, custom, or
 11 usage may not be construed to be exempt from the application of this
 12 chapter unless a state statute expressly exempts the statute, ordinance,
 13 resolution, executive or administrative order, regulation, custom, or
 14 usage from the application of this chapter by citation to this chapter.

15 **(b) This chapter does not apply to IC 16-34 or any action to**
 16 **enforce the requirements of IC 16-34.**

17 SECTION 17. IC 34-30-2.1-218.5 IS ADDED TO THE INDIANA
 18 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
 19 [EFFECTIVE JULY 1, 2026]: **Sec. 218.5. IC 16-34-7-21 (Concerning**
 20 **abortion inducing drugs).**

21 SECTION 18. IC 35-46-5-1.5, AS ADDED BY P.L.213-2016,
 22 SECTION 30, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 23 JULY 1, 2026]: Sec. 1.5. (a) As used in this section, "aborted" means
 24 the termination of human pregnancy with an intention other than to
 25 produce a live birth or to remove a dead fetus. The term includes
 26 abortions by surgical procedures and by abortion inducing drugs **in**
 27 **violation of IC 16-34-7.**

28 (b) As used in this section, "fetal tissue" includes tissue, organs, or
 29 any other part of an aborted fetus.

30 (c) This section does not apply to the proper medical disposal of
 31 fetal tissue.

32 (d) A person who intentionally acquires, receives, sells, or transfers
 33 fetal tissue commits unlawful transfer of fetal tissue, a Level 5 felony.

34 (e) A person may not alter the timing, method, or procedure used to
 35 terminate a pregnancy for the purpose of obtaining or collecting fetal
 36 tissue. A person who violates this subsection commits the unlawful
 37 collection of fetal tissue, a Level 5 felony.



COMMITTEE REPORT

Mr. President: The Senate Committee on Judiciary, to which was referred Senate Bill No. 236, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill be AMENDED as follows:

Page 1, delete lines 1 through 15.

Page 2, delete lines 1 through 10.

Page 9, delete line 42, begin a new paragraph and insert:

"SECTION 11. IC 16-34-2-4.7, AS AMENDED BY THE TECHNICAL CORRECTIONS BILL OF THE 2026 GENERAL ASSEMBLY, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4.7. (a) As used in this section, "abortion complication" means only the following physical or psychological conditions arising from the induction or performance of an abortion:

- (1) Uterine perforation.
- (2) Cervical laceration.
- (3) Infection.
- (4) Vaginal bleeding that qualifies as a Grade 2 or higher adverse event according to the Common Terminology Criteria for Adverse Events (CTCAE).
- (5) Pulmonary embolism.
- (6) Deep vein thrombosis.
- (7) Failure to terminate the pregnancy.
- (8) Incomplete abortion (retained tissue).
- (9) Pelvic inflammatory disease.
- (10) Missed ectopic pregnancy.
- (11) Cardiac arrest.
- (12) Respiratory arrest.
- (13) Renal failure.
- (14) Shock.
- (15) Amniotic fluid embolism.
- (16) Coma.
- (17) Placenta previa in subsequent pregnancies.
- (18) Pre-term delivery in subsequent pregnancies.
- (19) Free fluid in the abdomen.
- (20) Hemolytic reaction due to the administration of ABO-incompatible blood or blood products.
- (21) Hypoglycemia occurring while the patient is being treated at the hospital or ambulatory outpatient surgical center.
- (22) Allergic reaction to anesthesia. ~~or abortion inducing drugs.~~
- (23) Psychological complications, including depression, suicidal



ideation, anxiety, and sleeping disorders.

(24) Death.

(25) Any other adverse event as defined by criteria provided in the Food and Drug Administration Safety Information and Adverse Event Reporting Program.

(b) The following persons shall report to the state department each case in which the person treated a patient suffering from an abortion complication:

(1) A physician licensed under IC 25-22.5.

(2) A hospital licensed under IC 16-21.

(3) Beginning September 1, 2022, an ambulatory outpatient surgical center licensed under IC 16-21-2.

(c) The state department shall develop a process for the submission of a report under this section.

(d) A report under this section shall be submitted to the state department in the manner prescribed by the state department.

(e) The report under this section must include the following information concerning the abortion complication:

(1) The date the patient presented for treatment for the abortion complication.

(2) The age of the patient.

(3) The race of the patient.

(4) The county and state of the patient's residence.

(5) The type of abortion obtained by the patient.

(6) The date of abortion obtained by the patient.

(7) The name of the:

(A) hospital; or

(B) ambulatory outpatient surgical center;

where the patient obtained the abortion.

(8) Whether the abortion was performed or occurred in Indiana or outside Indiana.

~~(8)~~ **(9)** Whether the patient obtained abortion medication via mail order or ~~Internet web site~~, **website**, and if so, information identifying the source of the medication.

~~(9)~~ **(10)** Whether the complication was previously managed by the abortion provider or the abortion provider's required back-up physician.

~~(10)~~ **(11)** The name of the medications taken by the patient as part of the pharmaceutical abortion regimen, if any.

~~(11)~~ **(12)** A list of each diagnosed complication.

~~(12)~~ **(13)** A list of each treated complication, with a description of the treatment provided.



~~(13)~~ **(14)** Whether the patient's visit to treat the complications was the original visit or a follow-up visit.

~~(14)~~ **(15)** The date of each follow-up visit, if any.

~~(15)~~ **(16)** A list of each complication diagnosed at a follow-up visit, if any.

~~(16)~~ **(17)** A list of each complication treated at a follow-up visit, if any.

(18) The location, including the facility name and city or town, where the patient presented for treatment of the abortion complication.

(19) The full name of the health care provider who provided treatment for the abortion complication.

(f) The state department shall send each report received under this section to the office of the inspector general.

~~(f)~~ **(g)** On a quarterly basis, the state department shall compile a public report summarizing the information collected under this section. The report must include statistics for the previous calendar quarter, with updated information for the most recent calendar quarter.

~~(g)~~ **(h)** The state department shall summarize the aggregate data from the data submitted under this section and submit the data, on or before June 30 of each year, to the United States Centers for Disease Control and Prevention for its inclusion in the annual Vital Statistics Report.

~~(h)~~ **(i)** The state department shall ensure that no identifying information of a pregnant woman is included in the report described in subsection ~~(f)~~ **(g)**.

~~(i)~~ **(j)** This subsection applies after August 31, 2020. Each failure to report an abortion complication as required under this section is a Class B misdemeanor.

~~(j)~~ **(k)** The state department shall adopt rules under IC 4-22-2 to implement this section."

Delete pages 10 through 12.

Page 13, delete lines 1 through 5.

Page 16, line 23, delete "attorney general." and insert **"inspector general."**

Page 16, delete lines 24 through 42.

Page 17, delete lines 1 through 4.

Page 17, line 5, delete "(i)" and insert **"(f)"**.

Page 17, line 15, delete "(j)" and insert **"(g)"**.

Page 17, delete lines 21 through 25.

Page 21, line 31, delete "4" and insert **"6"**.

Page 22, line 1, delete "4" and insert **"6"**.



Page 32, line 12, delete "5, 8, or 17" and insert "**6, 9, or 18**".

Page 36, between lines 2 and 3, begin a new paragraph and insert:

"(j) A court may not award attorney's fees or costs under this section if the award would violate:

- (1) the Constitution of the State of Indiana;**
- (2) the Constitution of the United States; or**
- (3) federal law."**

Re-number all SECTIONS consecutively.

and when so amended that said bill do pass.

(Reference is to SB 236 as introduced.)

CARRASCO, Chairperson

Committee Vote: Yeas 7, Nays 4.

SENATE MOTION

Mr. President: I move that Senate Bill 236 be amended to read as follows:

Page 11, delete lines 39 through 42.

Delete pages 12 through 14.

Page 15, delete lines 1 through 30.

Re-number all SECTIONS consecutively.

(Reference is to SB 236 as printed January 23, 2026.)

JOHNSON T

